IN THE COURT OF CHIEF METROPOLITAN MAGISTRATE

Tis Hazari Courts, Delhi | Bail App No. 129/2024 | CNR: DLCT01-004820-2024

Applicant:	Rajesh Kumar S/o Late Ram Lal Kumar [In Tihar Jail No. 4]
Respondent:	State [NCT of Delhi] through SHO, P.S. Kashmere Gate
Applicable Law:	Section 479 Bharatiya Nagarik Suraksha Sanhita [BNSS], 2023
Constitutional Basis:	Article 21, Constitution of India [Right to Speedy Justice]
Undertrial Period:	428 Days undergone [Statutory 1/3rd limit is 365 days]
Legal Aid Counsel:	Adv. Meenakshi Sundaram [DLSA Central Panel, Reg D/1842/2012]

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1. FACTUAL MATRIX & FIRST-TIME OFFENDER STATUS

The Applicant is a first-time undertrial offender with zero prior criminal history.
Arrested on 16-March-2023 in connection with FIR 0482/2023 for alleged IPC 406/420.
Charge sheet filed; trial proceedings have suffered 9 non-merit adjournments.

2. MANDATORY STATUTORY RELIEF UNDER SECTION 479 BNSS

Section 479(1) First Proviso BNSS guarantees mandatory release on statutory bail
where a first-time offender has served one-third of the maximum prison term.
Maximum penalty under Sec 406 IPC is 3 years [1,095 days]. 1/3rd is 365 days.
Applicant has served 428 days, exceeding the statutory requirement by 63 days.

3. PRAYER TO HON’BLE COURT

It is most respectfully prayed that this Hon’ble Court admit the Applicant to
Statutory Bail on furnishing reasonable personal bond to the satisfaction of Court.

Adv. Meenakshi Sundaram (DLSA) **Applicant (Through Superintendent, Tihar)**